

25NNCV01926 25NNCV01926

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-14

Motion: MOTION FOR JUDGMENT ON THE PLEADINGS

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Case Number: 25NNCV01926 Hearing Date: July 14, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

WELLS FARGO BANK, N.A.

Plaintiff(s),

vs.

KRISTINA
KOTOVA,

Defendant(s).

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CASE NO.: 25NNCV01926

[TENTATIVE]

ORDER RE: MOTION FOR JUDGMENT ON THE PLEADINGS

Dept.

3

8:30

a.m.

July 14,

2026

I.

INTRODUCTION

On March 21, 2025, plaintiff Wells

Fargo Bank, N.A. ("Plaintiff") filed this action against defendant Kristina

Kotova ("Defendant") for the collection of a personal loan debt in the sum of

\$73,741.93. Defendant filed an answer on August 15, 2025. On June 2, 2026, Plaintiff

filed this motion for judgment on the pleadings against Defendant. The motion

is unopposed.

II.

LEGAL

STANDARD

A motion for judgment on the pleadings by the plaintiff can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant and “the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc. § 438, subd. (c).) The grounds for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts the court may judicially notice. (Id., subd. (d); Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 758-759.)

III.

DISCUSSION

The elements of a breach of contract claim are: (1) the existence of a contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach or anticipatory breach, and (4) resulting damage.) (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

“[A]ny matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission.” (Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 978-979 (italics omitted).)

Plaintiff argues that Defendant’s deemed admissions in discovery warrant a judgment on the pleadings because Defendant has admitted that they were issued the subject personal loan, that they were to repay the Plaintiff, that they received monthly statements and never disputed the accuracy of the statements, that they have not repaid the balance due on the loan, and that they do not have any defenses to Plaintiff’s Complaint. Accordingly, Plaintiff has shown that judgment on the pleadings is appropriate against Defendant and the motion for judgment on the pleadings is GRANTED.

IV.

CONCLUSION

Judgment is entered against Defendant in the amount of \$74,236.93, consisting of \$73,741.93 for the principal amount owed and \$495 in court costs.

Dated
this 16th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.